

Endorser / Influencer Agreement — Counsel Brief

⚠ **NOT LEGAL ADVICE.** An inventor-prepared brief requesting the paid-endorser agreement counsel should produce for the opt-in social endorser program. Complements the endorser/referral legal brief with the *contract* between the company and a paid member-endorser. Prepared 2026-09-14. See [SOCIAL-ENDORSER-AND-REFERRAL-LEGAL-BRIEF](#) , [SOCIAL-POSTING-ONE-TAP-AND-CONSENT](#) .

Why this matters

The paid-endorser program pays members a share of the measured conversion value their `#ad`-disclosed posts drive. Once a member is compensated to promote offers, the FTC treats them as an endorser with a **material connection** that must be **clearly and conspicuously disclosed**, and the company can share liability for deceptive or undisclosed posts. A written agreement sets the rules and allocates that risk.

What counsel should produce

- **Endorser agreement** — eligibility (18+, opted in), the compensation basis (non-cashable Site Cash share, caps), **mandatory `#ad`/`#sponsored disclosure`** that is enforced and unremovable, **no income claims / no unapproved claims** (endorser may use only the advertiser's approved copy), FTC-compliant conduct rules, monitoring + takedown rights, clawback for undisclosed/self/fraudulent conversions, term/termination, and 1099/tax acknowledgment.
- **Disclosure & training copy** the endorser must follow.

Decisions for counsel

Whether scheduled auto-posting to a consenting member's own account is acceptable or a permanent human "tap Post" must remain; independent-contractor posture and 1099 treatment of the Site Cash reward; platform liability allocation for an endorser's non-compliant post; interaction with each social network's own endorsement rules. Program ships **OFF** (`ENDORSER_ENABLED=0`) until cleared.

Not legal advice. Related: [SOCIAL-ENDORSER-AND-REFERRAL-LEGAL-BRIEF](#) , [AI-CONTENT-DISCLOSURE-DESIGN](#) , [Agreements\PARTNER-AFFILIATE-DEVELOPER-AGREEMENT](#) .